

27 Ass. plac. 1. 15 H. 7. 5. b. And it is to be observed, that he, who is prisoner to the King's Bench, is in *custodia Mareschalli Mareschalcie Domini* [72 a] *Regis*; and he who is prisoner to the Marshalsea of the Houshold, is in *Custodia Maresc' Mareschalcie hospitii dom' Regis*. And thereby also it appears, that the Steward, &c. *vices gerebat Capitalis Justiciarii*. And therewith agrees Britt. c. 1. who wrote in 5 E. 1. which was before the stat. of Articuli sup' Chartas; and that the Marshal of our Houshold, hold our place within the verge of our household, and that his office extends itself to hear and determine the presentments and articles of our Crown when we shall see it good. And note that these articles were those which justices in eyre charged the jury to enquire of, as it appears in Bracton, lib. 3 tract. 2 cap. 1. fol. 116. And therewith agrees the Mirror of Justices, which book was also wrote before the said Act of 28 E. 1. To the offices of (those) the Chief Justice belongs false judgment and errors, &c. and so it belongs to their office to hear and determine all plaints made of personal wrongs within twelve miles round about the King, and the gaol-delivery of prisoners deliverable, and to determine as much as is to be determined by justices itinerants. And Bracton also, who likewise wrote before the said Act, lib. 3. de Actionibus, cap. 7. fol. 105. *Habet Rex plures curias in quibus diverse actiones terminantur, et illarum Cur' habet unam propriam sicut Aulam regiam, et Justiciar' Capitales qui proprias causas Regis terminant, et aliorum, perquerelam, vel per privilegium, vel per libertatem.*

As to the other authority, the (a) Steward and Marshal are Judges of the Marshalsea of the King's Houshold, and this Court at the common law had a particular and limited jurisdiction: 1. In respect of the causes; for they as Judges of this Court had jurisdiction only of pleas of the Crown, and of (b) three particular common pleas, *sc.* pleas of debt, covenant, and trespass *vi et armis*, as of battery, goods taken away, but not of trespass *Quare clausum fregit*, *ejectione firmæ*, action on the case, *detinue*, nor any other personal action, nor of any real or mixt action: 2. In respect of the persons; for in (c) debt and covenant both the parties ought to be of the King's Houshold, but in trespass it was sufficient if one of the parties was of the King's Houshold; and this also appears by Fleta lib. 2. cap. 3. *Si autem de aliquo familiari Regis* (i. any of the King's Houshold) *fiat queremonia, primo summoneatur, 2. attachietur, 3. capiatur, &c.* whereby it appears, that the trespass ought to be *vi et armis*, and not upon the case, otherwise a (d) *capias* lay not at the common law, and also that it was sufficient if one of the parties was of the King's Houshold. But forasmuch as the Steward and Marshal had at the common law these authorities, the one general, and the other particular, and both Courts were [72 b] then held in *aulâ Regis*; that they had the general authority but at will, and had a fixed estate for their lives in the other, they drew to the Court of their Marshalsea, by colour of the said general authority many causes which did not by law belong to the jurisdiction of the said Court. 3. In respect of the place to which their jurisdiction was circumscribed; and that appears by Fleta, lib. 2. cap. 2. *Infra metas hospitii continentes* (a) 12. *leucas in circuitu*, and the Mirror of Justices, *ubi supra*. And this was the law before the statute of (b) 13 R. 2. cap. 3. but that limits the twelve miles to be computed from the King's lodgings. And the Steward and Marshal, being so restrained, invented divers means and devices to enlarge their jurisdiction, and to encroach upon the common law; and therefore if in the bond or covenant, &c. mention was made of distress of the Steward or Marshal of the King's Houshold, or one of them, they would hold plea thereof, although the bond or covenant was made out of the verge. And also they used to take consuance of debts and other things, where the parties were not of the King's Houshold, and that appears by Fleta, lib. 2. cap. 3. *Tunc demum de obligationibus et contractibus, in quibus debitores ad districtionem Seneschalli et Mareschalli domini Regis sponte se obligaverunt.* "Et paulo post, Et nota, quod in obligatione omni in quâ fit mentio de districtione Seneschalli

(a) 6 Co. 12. a. F. N. B. 241 b. 19 E. 4. 8. b. 20 E. 4. 16. b. Cr. Jac. 314. 1 Bulstr. 210.

(b) 2 Inst. 548. Postea 74. b.

(c) 6 Co. 20. b.

(d) 3 Co. 12. a.

(a) 4 Co. 47. a. Postea 74. a. F. N. B. 241. b.

(b) 1 Bulstr. 209.